Revision Date:
November 1, 2023

Background:
The CalWORKs program mandates all children in an Assistance Unit (AU) age 16 and above, and for whom school attendance is mandatory, regularly attend school.

Purpose:
The purpose of this revision is to streamline and consolidate policies from CalWORKs Program Guide (CPG) sections 42-100.D through CPG 42-100.I into one section and renumber them to CPG 42-100.B. This section is also being revised to remove duplicate or obsolete policies and for Sunset Date review. No policy or procedure changes have been made. Sections CPG 42-100.D through CPG 42-100.I become obsolete with the issuance of this revision.

Policy:
Regular School Attendance
Effective January 1, 2015, a child is presumed to be attending school unless they have been deemed a chronic truant pursuant to Section 48263.6 of the Education Code. Customers are not required to provide verification of school attendance at application nor annual redetermination.

Exemption to the School Attendance Requirement
The following children are exempt from CalWORKs school attendance requirements:
- A pregnant or parenting teen eligible for Cal-Learn (Refer to CPG 15-000)
- A child who has graduated from high school or the equivalent
- Children not included in the AU, such as children aided under Foster Care, Supplemental Security Income/State Supplemental Payments (SSI/SSP), or children who are undocumented immigrants

Home School Programs
Home school programs are acceptable as long as the home study program is recognized by the school district and an agreement has been entered into with the school district.

Informing Requirements
All CalWORKs customers must be informed of California's compulsory education law, which requires everyone between the ages of six and 18 years of age to attend school, except students who have graduated from high school or passed the California High School Proficiency Exam (CHSPE) and obtained parental permission to leave.

Continued Eligibility for 18-Year-Old Students
To determine continuing CalWORKs eligibility for the child who turned 18, the parent/caretaker relative must provide documentation from the child's school to verify the anticipated graduation date. Documentation must be requested from the parent/caretaker relative a month before the 18th birthday month, which must be returned by the established due date. Refer to CPG 42-100.A for additional requirements when the child turns 18 years old.

Students 16 Years of Age or Older

If a school district or a School Attendance Review Board (SARB) determines that a child 16 years of age or older is deemed a chronic truant pursuant to Section 48263.6 of the Education Code, the needs of the child will not be reduced immediately. Instead, the child will be referred to Employment Services (ES) to develop an ES Plan (refer to CPG 10-005.K), unless at least one of the exception criteria exists, as described in the Exception to the School Attendance Requirement section above.

School Attendance Penalty

Children aged 16-18 who attend school on a full-time basis are exempt from ES. Therefore, when children aged 16 and older are deemed chronic truants, they lose this ES exemption and must be referred as mandatory participants to ES activities and have an ES plan developed.

If after an ES plan is signed, the child does not cooperate with the plan, remains truant, has no good cause, and does not meet an exception, at that time the school attendance penalty must be applied to the AU's grant. The needs of the child will not be considered in computing the grant of the family.

The case file will be reviewed to ensure if good cause has been requested or to evaluate exception criteria and the evaluation for the request has been completed prior to taking the penalty action. If good cause is requested and approved, or if any of the exception criteria is met, the penalty action will not be taken. All good cause requests/exception criteria met and determinations will be narrated in the case comments.

Note: The child is not subject to ES sanction for failure to follow the ES plan. Only the school attendance penalty will apply in this situation.

School Attendance and Semi-Annual Reporting - Annual Reporting/Child Only

Mid-period/year action may be taken to apply the school penalties, at the end of the month in which the change occurred, with timely notice, even if it results in a decrease in cash aid. If the timely notice requirement cannot be met, action will be taken by the end of the following month.

If the child is the only aided member in the AU and that child is to be penalized, the grant for the AU is zero.

Reminder: The needs of a child can only be removed if the child is actually in the AU. If the child is excluded (such as an SSI/SSP recipient or an undocumented alien) the penalty cannot be applied to that child.

Bureau of Public Assistance Investigations (BPAI) Referral

When the penalty has been imposed for more than six months, the case may be referred to BPAI to verify that the child is in the home.

Penalty Exception Criteria

A school attendance penalty will not be applied if at least one of the following exception criteria exists:

- Evidence is provided that the child's attendance records are not available
- Evidence is provided that the child has been attending school

- Good cause for school nonparticipation exists at any time during the month
- Any member of the household is eligible to participate in the county's current family stabilization program for any reason, including other siblings and parents
- Evidence is provided that the child, parent, or caregiver is complying with requirements imposed by a SARB, the County Probation Department, or the District Attorney
- A member of the household is cooperating with a plan developed by a county child welfare agency such as Juvenile Probation, County Child Protective Services or Foster Care, etc.

Good Cause

Good cause will be evaluated when good cause is apparent, or when the parent/caretaker relative requests it. Apparent good cause exists when a request is made to provide the school attendance documentation and the school is closed for an extended period of time (such as school breaks). Refer to the School Not in Session section below for additional instructions.

Good cause also exists if the parent/caretaker relative is ill and unable to have verification completed by the school, and no other responsible adult is in the home and able to have the verification completed. In this situation, a date must be determined when the verification can be reasonably submitted, and the new date and the reason for the extension must be documented in the case.

Good cause will be evaluated when the customer is claiming domestic violence. If the abuse occurred in the past, the issue causing the non-cooperation, or inability to comply, must be related to the current situation (CPG 40-100.E).

Excess absences

When evaluating for good cause, the child's chronic truancy will be evaluated if it is related to any of the following:

- Illness
- Hospitalization
- Court appearances
- Mental/physical disability
- Other reasons beyond the control of the child or the parent

Good cause exists for the above situations if the parent/caretaker relative provides the following written verifications:

For	Verification Type
Illness	Doctor's statement
Hospitalization	Hospital verification or Doctor's statement
Court appearances	Court documents
Mental/physical disability	Psychiatrist's, Therapist's, Physician's, or Licensed Social Worker's statement
Other reasons	Parent's sworn statement

Also, staff will work with the parent/caretaker relatives to establish good cause when it is clear that the child has underlying issues impacting regular school attendance. Resources will be provided to assist the parent/caretaker and allow adequate time for the parent/caretaker to provide appropriate verification of good cause.

Any verification that has an expiration date will be followed up to determine future attendance compliance.

The following will be documented and narrated: all good cause requests, type of verifications provided, and actions taken.

Note: In some situations, a parent may indicate a child missed only a class or went to school late, but the school verification shows as a "full day" absence. In these situations, the parent will be instructed to provide written verification from the school explaining the child is no longer deemed a chronic truant or meeting at least one of the exception criteria.

School Not In Session

Schools might not be in session when the parent/caretaker is attempting to obtain verification from the school, to show that the child is either attending school or meeting at least one of the exception criteria.

The following procedures will be followed for times when the school is not in session:

- Verification from the previous school semester, showing regular attendance, when the school is closed for an extended period (such as summer breaks) will be accepted
- If aid is being restored, a previous verification will be accepted, if dated within the past semester, or the customer's statement, if there is no question or conflicting information about the child's attendance
- The parent/caretaker will be notified to provide new school attendance verification when the school reopens. A reminder will be created to follow up with the request when the school reopens

Restoration of Aid

School attendance penalties will be lifted once verification is received that the child is no longer considered/deemed a chronic truant pursuant to Section 48263.6 of the Education Code, has good cause, meeting at least one of the exception criteria, or receives a high school diploma.

Once a penalty is imposed, the needs of the child(ren) will not be restored until:

- Documentation is received from the school verifying the child is no longer deemed a chronic truant
- The Parent/caretaker relative provides acceptable good cause verification and good cause is granted within 30 days from the effective date of the penalty - In this situation, the penalty will be rescinded, and aid will be restored as if no penalty had been imposed
- At least one of the conditions of the exception criteria exists
- The penalized child receives a high school diploma or its equivalent

Note: It is the parent/caretaker relative's responsibility to contact the school and provide any type of written documentation from the school that states the child is no longer deemed a chronic truant.

Once the school penalty is cured, it will be removed at the beginning of the month after the month in which the penalty was cured, if eligibility remains.

Procedure:
CalWORKs Processing 10-005.K1 – Employment Services Activities for High School Students

Impacts:
Forms Impacts
07-31C HHSA - CalWORKs School Attendance Requirement Information

- A 07-31C HHSA form will be provided to all CalWORKs customers at application and at their annual renewal, and will be included in the application and renewal packets
- A case comment will be entered that the customer was informed about the school attendance requirement, and that a copy of the 07-31C HHSA was provided to the customer

Notice of Action (NOA)
Use M40-105E NOA to:

- Specify which child is not attending regularly or lacks proof of regular attendance
- Specify that it pertains to children aged 16 and older
- Inform that the AU's grant will be decreased
- Tell customers how they can correct a penalty and when cash aid would be restored

References:
EAS 40-105.5
ACL No. 14-12, 15-22, 15-22E, 18-34, 23-30

Sunset Date:
This policy will be reviewed for continuance by November 30, 2026.

Approval for Release:

11-27-23

Rick Wanne, Director
Self-Sufficiency Services